

Annex A

RCIC-IRB responsibilities are as follows:

1. Assess Eligibility and Determine Program Stream

Review the Employer's business operations, recruitment needs, and job offer details to determine eligibility for an LMIA.

Identify the appropriate LMIA stream (e.g. High-Wage, Low-Wage, Agricultural, or Global Talent Stream) based on the Employer's position and requirements.

Provide Legal and Procedural Guidance

Explain the LMIA process, compliance obligations, timelines, and potential outcomes to the Employer.

Advise the Employer on advertising, recruitment, and wage requirements as per ESDC guidelines.

Provide direction on supporting documents required to establish business legitimacy and ability to fulfill program obligations.

2. Prepare and Submit the LMIA Application

Complete all required ESDC/Service Canada forms accurately and truthfully, based on information provided by the Employer.

Draft supporting letters and justifications to accompany the LMIA submission.

Review all supporting documentation for completeness and compliance.

Submit the LMIA application electronically or by mail to Service Canada, as per program requirements.

3. Coordinate Recruitment and Advertising Compliance

Guide the Employer through mandatory recruitment and advertising requirements.

Review job postings and advertisements to ensure compliance with ESDC advertising standards.

Assist the Employer in preparing recruitment summary reports outlining efforts and outcomes.

4. Communicate with ESDC/Service Canada

Act as the Employer's authorized representative for all communications related to the LMIA application.

Respond to Service Canada requests for additional information, clarification, or documentation in a timely manner.

Coordinate scheduling of any interviews or verifications conducted by ESDC officers.

5. Provide Post-Decision Guidance

Notify the Employer of the decision rendered by ESDC/Service Canada.

Advise the Employer on next steps following approval, including issuance of the confirmation letter and instructions for the foreign worker's work permit application.

In the case of refusal, discuss available options such as reconsideration or resubmission (subject to a new retainer agreement and additional fees).

6. Professional Accountability and Compliance

Conduct all work with integrity, diligence, and professionalism.

Comply fully with all obligations under the Immigration and Refugee Protection Act (IRPA), Employment and Social Development Canada (ESDC) regulations, and the College of Immigration and Citizenship Consultants (CICC) Code of Professional Conduct.